



— THE STANDARD · SESSION 1 · FLORIDA

The Law Is the Standard

Our duties under Florida Chapter 475 — and why every system we run starts there.

Pedro Bando Rivera, Broker/Owner

GENERAL · OFFICE · ETHICS

FLORIDA OFFICE

SESSION 1

— THE YEAR OF

2026 Is THE Year of SYSTEMS and NEW Skill Developments.

— PRODUCTION CENTRIC BOUTIQUE FIRM

Mission

To redefine traditional real estate expectations delivering a **personalized**, **tech-driven**, and **client-centric** approach to buying and selling real estate.

Vision

To succeed in becoming the local industry **leader** focused on **humanizing** the real estate industry, leveraging innovation, investment and growth, while remaining a **community resource**.

— PRODUCTION CENTRIC BOUTIQUE FIRM

Misión

Redefinir las expectativas tradicionales del sector inmobiliario, brindando un enfoque **personalizado**, impulsado por la **tecnología** y centrado en el **cliente** para la compra y venta de propiedades.

Visión

Triunfar en convertirnos en el **líder local** de la industria enfocado en **humanizar** el sector inmobiliario, aprovechando la innovación, la inversión y el crecimiento, mientras seguimos siendo un **recurso para la comunidad**.

STORY TIME

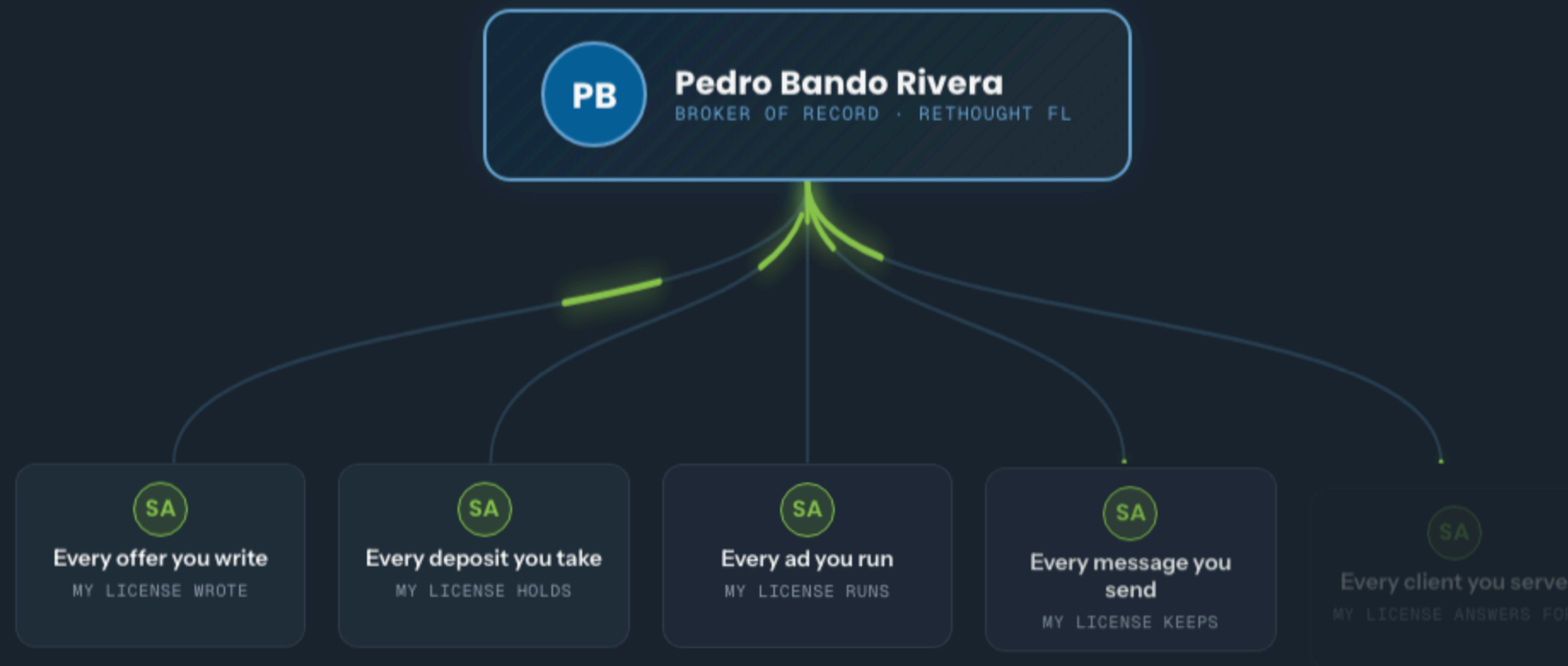
My broker doesn't just teach me to close. He teaches me the law that protects my clients.

Mi broker no solo me enseña a cerrar. Me enseña la ley que protege a mis clientes.

RETHOUGHT REAL ESTATE · RELEARN · THE STANDARD



Why I'm Required to Teach This



§475.01(1)(j) – you act under the broker's "direction, control, or management"

§475.25(1)(u) – failing to supervise = discipline

§475.5015 – records & communications kept 5 years

This session isn't culture. It's **Chapter 475** — the one job the state says I can't delegate.

What My License Answers For

Six statutory responsibilities. Every office system maps to one of them.



Your Transaction Records

Every contract, disclosure & offer — preserved **5 years**, by the broker.

§475.5015



Escrow Money

Deposit to your broker by **end of next business day**; banked by **day 3**.

61J2-14.008 / .009



Relationship Disclosures

Single agent notices & transition consents — in writing, on file.

§475.278



Your Advertising

Brokerage name on every ad. Nothing false, deceptive, or misleading.

61J2-10.025



Your Communications

Electronic mail and electronic messages sent or received by a broker or agent.

61J2-10.025

Everything in today's session exists because **one of these boxes is mine.**

The File Outlives the Deal

“

“Each broker shall preserve at least one legible copy of all books, accounts, and records pertaining to her or his real estate brokerage business for at least 5 years from the date of receipt of any money, fund, deposit, check, or draft entrusted to the broker or, in the event no funds are entrusted to the broker, for at least 5 years from the date of execution by any party of any listing agreement, **offer to purchase**, ... or any other written or verbal agreement which engages the services of the broker.”

– FLA. STAT. §475.5015

EN CRISTIANO: If a client ever signed anything, or money ever touched the broker’s hands, the file stays five years — whether or not the deal ever closed.



The deal can die. The file cannot. El deal puede morir. El expediente no.

The 72-Hour Clock

“

*“Every sales associate who receives any deposit shall deliver the same to the broker or employer no later than the end of the **next business day** following receipt...”*

— FREC RULE 61J2-14.009

*“‘Immediately’ means the placement of a deposit in an escrow account no later than the end of the **third business day** following receipt of the item to be deposited.”*

— FREC RULE 61J2-14.008(3)

EN CRISTIANO: You have until end of tomorrow to hand it to your broker. The broker has until end of day three to bank it. Weekends and holidays don't count.

MON

Check touches your hand —
clock starts

TUE

In my hands (end of next
business day)

THU

In the escrow account (end
of 3rd business day)

SAT

—

NOT A BUSINESS DAY

SUN

—

NOT A BUSINESS DAY

The clock starts when the check touches your hand — not when you get around to it. El reloj empieza cuando el cheque toca tu mano.

Before, Not After

“

*“Duties of a single agent must be fully described and disclosed in writing to a buyer or seller either as a separate and distinct disclosure document or **included as part of another document such as a listing agreement** or other agreement for representation. The disclosure must be made before, or at the time of, entering into a listing agreement or an agreement for representation or before the showing of property, **whichever occurs first.**”*

– FLA. STAT. §475.278(3)(B)

EN CRISTIANO: The notice can live inside the contract itself — and whichever of the three trigger moments comes first, the notice already has to be there.

LISTING SIDE The notice lives inside the contract.

 **Single Agent Listing Agreement**
Single Agent Notice printed inside • one signature

 Transaction Broker Listing

 No Brokerage Listing

 **Consent to Transition**
when single agent → transaction broker mid-deal

You choose the relationship the moment you choose the form. Contract and disclosure — signed together, filed together.

BUYER SIDE The first showing is the deadline.

Buyer calls Tuesday

→

Showings Saturday

→

Notice + buyer agreement **BEFORE** the first door opens

No listing contract to carry the paper yet — that’s exactly why the statute names the showing. (And NAR already requires the signed buyer agreement before touring.)

Paper before the relationship — never after the handshake. El papel antes de la relación, nunca después.

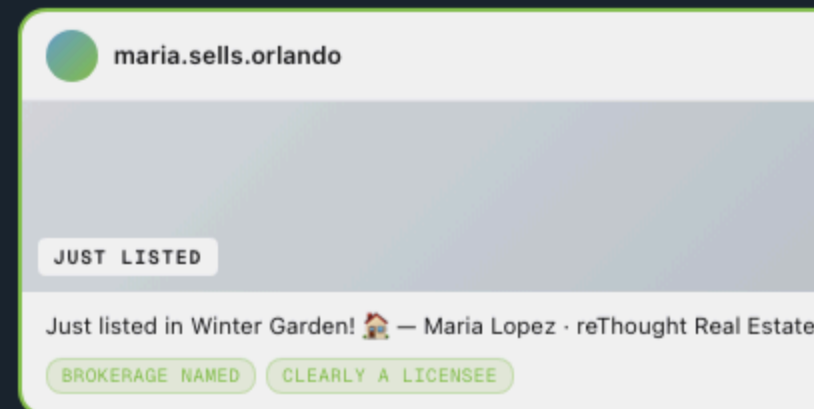
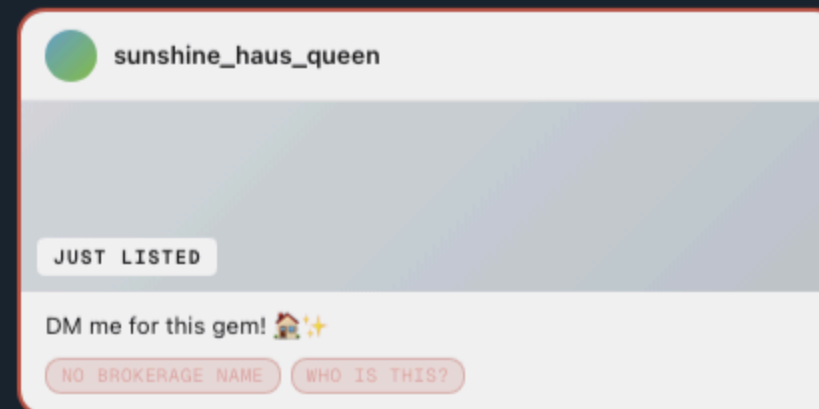
Every Post Is an Ad

“

“...in a manner in which **reasonable persons would know** they are dealing with a real estate licensee... No real estate advertisement...shall be fraudulent, false, deceptive or misleading.”

— FREC RULE 61J2-10.025

EN CRISTIANO: If a stranger scrolling by can't tell you're a licensed agent with a real brokerage, the post itself breaks the rule.



If a reasonable person can't tell you're a licensee with reThought, the post is the violation. Si no pueden saberlo, el post ya es la violación.

“...or any other written or verbal agreement which **engages the services of the broker.**”

EXHIBIT A



Direct. Control. Manage.

“

“Has failed, if a broker, to **direct, control, or manage** a broker associate or sales associate employed by such broker.”

– FLA. STAT. §475.25(1)(U)

EN CRISTIANO: If I don’t actively direct, control, and manage every one of you, the Commission can discipline my license for it — not yours, mine.

01

DIRECT

Training before the field.

Tuesday sessions like this one

Written office policies

02

CONTROL

Nothing binds unchecked — every document stays within my reach.

Broker file review

Every file lives in the loop

SUBMITTED → REVIEWED ✓

03

MANAGE

The systems running in the background.

Company email

Microsoft Teams

5-year records archive



Three lanes. One license — mine. If any lane goes dark, §475.25(1)(u) doesn’t discipline you — it disciplines me.



LICENSE

When I review your file, that’s not micromanagement — that’s the statute happening. Eso no es microgerencia, es el estatuto pasando.

ACT 2

§475.278

When a client says “you work for me”... do you?

Florida gives you exactly three legal relationships with a buyer or seller. Most agents can't name the one they're in.

01 · ?

02 · ?

03 · ?

Tres relaciones legales. Una presunción. ¿Cuál es la tuya?

Three Relationships. One Presumption.

Florida gives you exactly three ways to work with a buyer or seller. If nothing is in writing — you're the first one.

THE DEFAULT — PRESUMED

Transaction Broker

Limited representation of buyer, seller, or both — **no fiduciary duty** to either.

§475.278(1)(b): "It shall be presumed that all licensees are operating as transaction brokers" unless another relationship is established in writing.

IN WRITING ONLY

Single Agent

Full **fiduciary** representation of one party only.

Requires the statutory Single Agent Notice, in writing, before or at listing / representation — or before showing.

RARE

No Brokerage Relationship

You represent **no one** — but still owe honesty, material-fact disclosure & accounting.

Established in writing. Three baseline duties never go away.

If you can't name your relationship on a deal, **Florida already named it for you.**

Transaction Broker: **7 Duties** You Already Owe

The default relationship still comes with a statutory duty list. This is the floor, not the ceiling.

01 Dealing honestly and fairly

02 Accounting for all funds

03 Using skill, care, and diligence

04 Disclosing known facts that materially affect value of residential property, not readily observable to the buyer

05 Presenting **all offers and counteroffers** in a timely manner unless a party has previously directed otherwise — in writing

Limited representation is not low representation. Representación limitada no es representación baja.

Single Agent: 9 Fiduciary Duties

The five you know — plus the four in blue that make it **fiduciary**.

01 Dealing honestly and fairly

02 **Loyalty**
the client's interest first — before yours, before your commission

03 **Confidentiality**
full — not limited

04 **Obedience**
their price, their terms, their call — you advise, they decide

05 **Full disclosure**
everything relevant to your principal — not just defects

Single agent = the client's **advocate**. Transaction broker = a **neutral facilitator**. Know which hat you're wearing.

Limited Confidentiality: 5 Things You Never Reveal

Most violations sound like friendly small talk. Each one is a statutory breach.



Seller will take less than asking

| *"Offer 380, I know they'll take it"*

THE #1 ACCIDENTAL VIOLATION IN FLORIDA



Buyer will pay more than offered

| *"They'd honestly go to 425"*



Anyone's motivation

| *"It's a divorce — they're desperate"*



Flexible financing terms

| *"They'd carry the difference"*



Anything asked to stay confidential

| *"Between us..." isn't a loophole*

The only right answer to "what will they take?" — **"Present your best offer and we'll present it to the seller."**

When the Law Demands Paper

Two legal requirements. Zero drafting — the language lives in our forms.

SINGLE AGENT

Duties disclosed **in writing** before listing, representation, or first showing — whichever occurs first.

§475.278(3)(b)

SINGLE AGENT → TRANSACTION BROKER MID-DEAL

The principal's **written consent**, signed or initialed, before the transition.

§475.278(3)(c)

YOU NEVER DRAFT THIS LANGUAGE — IT'S ALREADY PRINTED INSIDE OUR DOCUMENTS:



Listing Agreement — Single Agent edition (*notice built in*)



Buyer Broker Agreement — Single Agent (*notice built in*)



Consent to Transition to Transaction Broker (*standalone form*)

WHEN WOULD I EVER TRANSITION?

Your single-agent buyer falls in love with your own single-agent listing. You can't owe undivided loyalty to both sides of one deal — so **BOTH sign the consent**, and you become a transaction broker for that transaction.

A phone call is not consent. A text that says “ok” is not consent. **Signed or initialed. On file.**

Buyer Broker Agreement: Before You Tour, You Sign

Florida Law

- Ch. 475 does **not** require a written buyer agreement
- The transaction-broker presumption fills the gap
- So legally... optional?

NAR + MLS Policy — Binding on Us

- ✓ **Written agreement before touring** — including live virtual tours
- ✓ Compensation **specific & conspicuous** — objectively ascertainable, never open-ended
- ✓ You may **not collect more** than the buyer agreed to — from any source

The Agreement ≠ The Relationship

01 Sign nothing about agency? Florida still presumes you're a transaction broker — automatically.

02 Writing is only required to **change** that default — single agent or no brokerage, per Ch. 475.

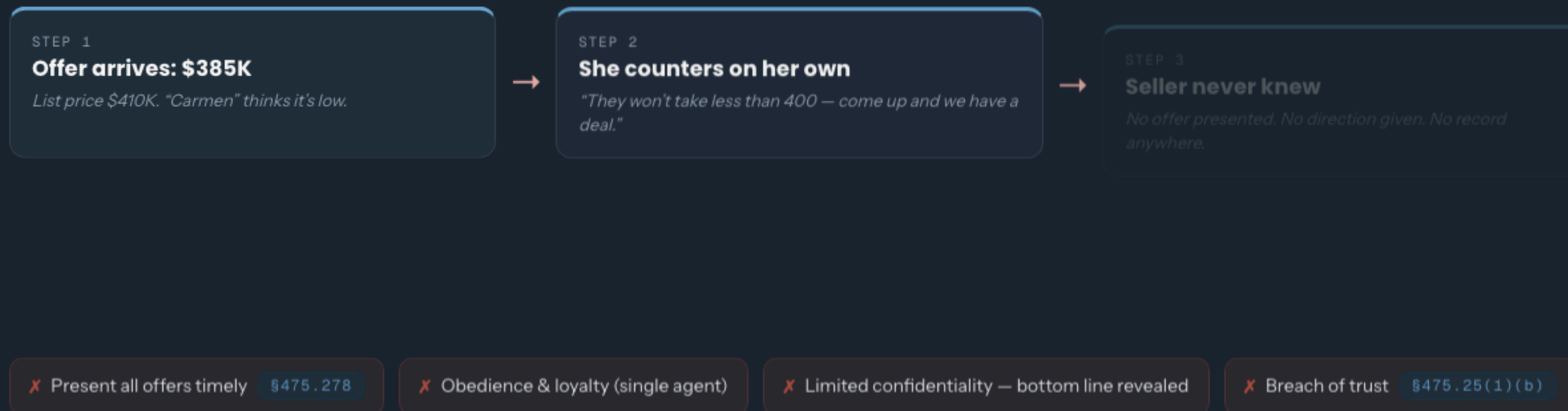
03 The buyer agreement sets services + compensation. It does **not** establish single agency — want fiduciary status? Add the Single Agent Notice.

NO SIGNED AGREEMENT = NO TOUR

IT'S ALSO HOW YOU GET PAID

This isn't friction. It's the moment your buyer learns **what you do and what you earn**. Clarity is the brand.

The Invisible Seller



Every offer gets presented. The seller directs the response. You advise — they decide. Cada oferta se presenta — el seller decide.

The Offer Nobody Answered

“Marcos” sends a clean full-price offer. Day 1... day 2... day 3 — his buyers walk.

§475.278 – present ALL offers & counteroffers “in a timely manner”

NAR SOP 1-6 – “as quickly as possible”

NAR SOP 1-7 – written affirmation of presentation on written request

1 Acknowledge — same day

“Received, thank you — presenting to my seller today.” In writing.

2 Present — same day

Seller sees every offer. Log when and how it was presented.

3 Respond — in writing

Accept, counter, or decline — whatever the seller directs. Paper trail always.

Silence is not a negotiation strategy. **Every offer deserves an answer** — and a cooperating broker can demand written proof it was presented.

The Naked Offer

“Hi, my clients want to offer \$415K on Palm Ave — let me know.” That was the whole offer.

What arrived

- ✗ A price... in an email
- ✗ No signed contract — no initials, blanks empty
- ✗ No pre-approval or proof of funds
- ✗ No disclosures, no deadlines, no escrow details

What a professional sends

- ✓ Fully signed FAR/BAR — every blank filled, every page initialed
- ✓ Pre-approval / POF — dated, matching the buyer
- ✓ Signed disclosures + escrow: who holds it, when it lands
- ✓ Response deadline + one clean summary email

“Skill, care, and diligence” is a statute, not a compliment. In multiple offers, complete files get ranked first — every time.

An Offer Lands on Your Listing. **Now What?**

- 1

Acknowledge — same day, in writing
"Received — presenting to my seller today."
- 2

Upload to the loop — immediately
The moment it's in, it's a brokerage record. \$475,5015
- 3

Present to your seller — same day
Phone + email. The email is your proof of presentation.
- 4

Get the seller's direction — in writing
Accept / counter / decline. Their words, not your assumption.
- 5

Respond in writing — log it
The record answers for you.

My Loops > 123 Palm Ave — Listing > Offer 1 — Smith

FAR/BAR AS-IS Contract — Smith Offer \$385,000

SUBMITTED

Pre-Approval Letter — Smith

SUBMITTED

Seller Counter #1 — \$402,500 (seller-directed)

SENT

Activity

● Offer received & acknowledged — 10:02 AM

● Presented to seller (call + email) — 11:15 AM

● Seller directed counter at \$402,500 — 2:40 PM

● Counter delivered to buyer's agent — 3:05 PM

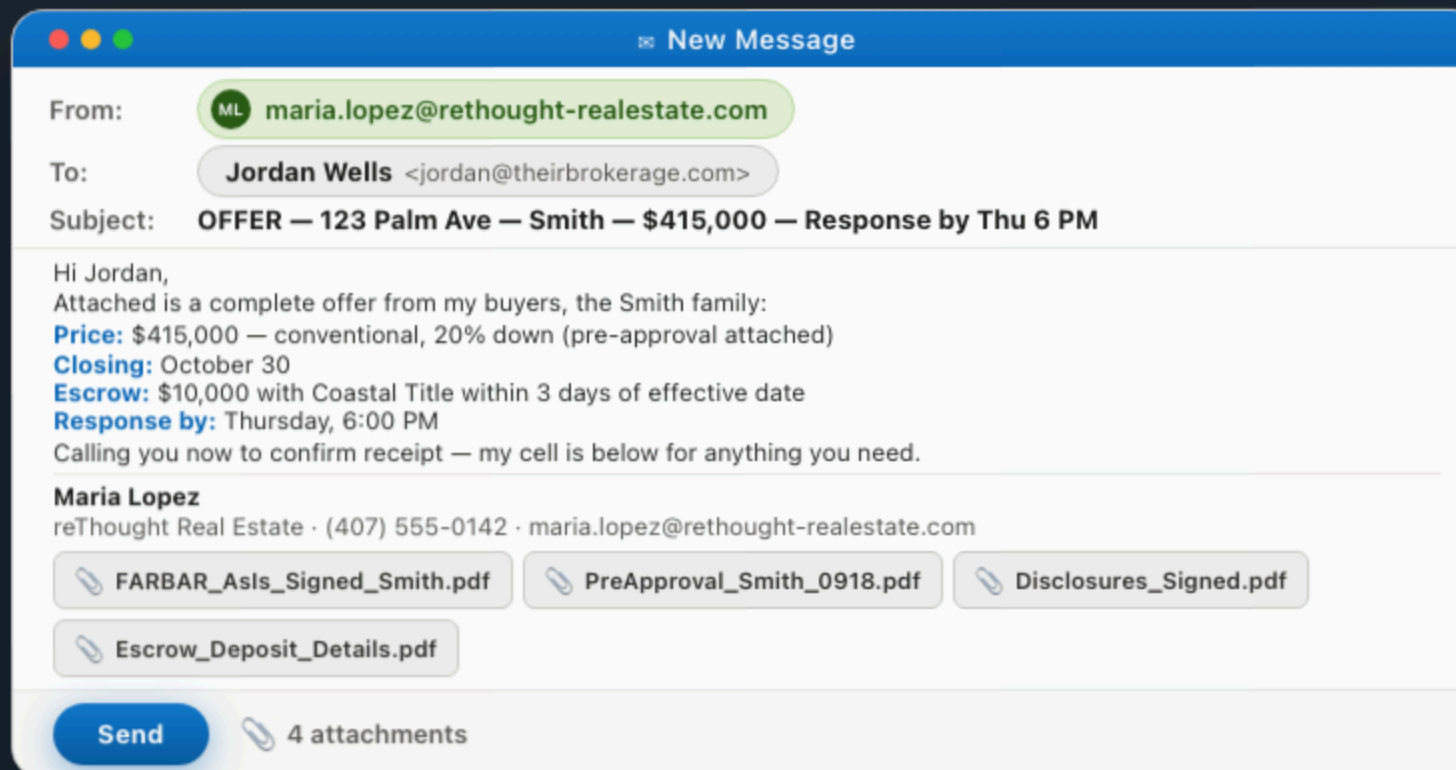
A file that looks like this can never be accused of sitting on an offer. **The record answers for you.**

LEARN.

THE STANDARD · SESSION 1

24 / 32

Sending an Offer Like a Professional



Send — then call to confirm receipt

The call makes your offer impossible to miss.

Complete package = your diligence duty

Skill, care, and diligence is a statute — an incomplete offer is a diligence failure.

Why Every File Lives in the Loop

5-Year Record Duty — met on submit

Every contract, offer & disclosure preserved the moment it's uploaded.

§475.5015

Broker review = statutory supervision

"Submitted → Reviewed" is "direct, control, manage" happening in real time.

§475.25(1)(u)

The escrow clock — proven

To your broker by next business day; banked by day 3. Timestamps are the evidence.

61J2-14.008 / .009

My Loops > 88 Bayshore Dr — Purchase > Documents

FAR/BAR AS-IS Contract — Executed

REVIEWED ✓

Escrow Deposit Letter — \$12,000 · received 9/19, deposited 9/21

REVIEWED ✓

Brokerage Relationship Disclosure

REVIEWED ✓

Inspection Addendum

NEEDED

Broker review — PB ✓ Sep 21, 4:12 PM · file audit-ready

When the Commission asks a question, **the loop answers in 30 seconds.** One system. Three statutes. Zero stress.

Why Business Runs on Company Email



It's a brokerage record

Transaction emails are part of the 5-year file — captured automatically.

8475.5015



It carries the firm's name

Often your first impression — licensed professional, real firm, real broker.

61J2-10.025



It protects client data

Pre-approvals, bank statements, escrow instructions — business-grade security.



It covers your client

You're on a plane, deal on fire? The office can step in and protect them.

COULD BE ANYONE

sunshineagent407@...

no firm, no broker, no way to verify

BACKED BY A BROKERAGE

maria.lopez@rethought-realestate.com

a licensed professional at a real firm — verifiable in one glance

Every message from your company address quietly advertises one thing: **this agent is backed by systems.**

Your Voicemail Is a Duty Checkpoint

You can't present offers "in a timely manner" if the market can't reach you — or doesn't trust it reached the right person.



Maria Lopez
reThought Real Estate



GREETING • 0:12

RECORD THIS TODAY — 30 SECONDS

"You've reached **[your name]** with **reThought Real Estate**. I can't take your call right now — leave your name and number and I'll call you back the **same business day**."

"Ha llamado a [su nombre] de reThought Real Estate. Deje su nombre y número y le devuelvo la llamada el mismo día laboral."

Name + brokerage + a promise — then **keep the promise**: same-business-day callbacks. That's the standard.

Eight Commitments. **Zero Preferences.**

Every one traces to a statute or rule we read today. Session 2 opens with a self-check against these.

01

Relationship disclosed

TB or single agent — named & on file, every deal

02

Buyer agreement first

Signed before touring — compensation specific

03

Offers presented same day

Acknowledged, presented, logged

04

Seller directs, I execute

Never negotiate without written direction

05

Complete offer packages

Contract + financing + disclosures + deadline

Ch. 475 + FREC rules + the REALTOR® Code — **translated into eight habits.**

— LIVE EXERCISE • 10 MINUTES • PAIRS

Duty Role-Play

Three rounds. Switch roles after each. The statutes only protect your client if they come out of your mouth naturally.

EN

R1

“So... do you work for me or not?”

Explain TB vs. single agent in plain language — 60 seconds, no statute numbers.

R2

“Just tell me — what will they really take?”

Answer as a transaction broker without breaking limited confidentiality.

R3

“Don’t bring me anything under \$400K.”

What must exist before you can filter offers? (It starts with “in writing...”)

ES

“¿Entonces... trabajas para mí o no?”

Explica transaction broker vs. single agent en lenguaje simple — 60 segundos, sin números de estatuto.

“Dale, dime — ¿cuánto es lo que de verdad aceptan?”

Responde como transaction broker sin romper la confidencialidad limitada.

“No me traigas nada por debajo de \$400K.”

¿Qué tiene que existir antes de poder filtrar ofertas? (Empieza con “por escrito...”)

I’ll be walking the room. **Simple beats impressive** — if your partner can’t repeat it back, say it simpler.

— AI SHORTCUT

Use AI to Drill Your Duties

Copy this prompt. Paste it into Claude or ChatGPT. 10 minutes a night until Session 2.

COPY · PASTE INTO YOUR AI PROJECT

CLAUDE / CHATGPT / GEMINI

You are a tough-but-fair Florida real estate broker running a compliance drill. Quiz me ONE scenario at a time on my duties under Fla. Stat. §475.278: transaction broker vs. single agent, limited confidentiality, presenting offers, written disclosures, and NAR's written buyer agreement rule. Play buyers, sellers, and agents who pressure me to break a duty. After each answer tell me: (1) was I legally correct, (2) which duty was at stake, (3) a cleaner way to say it to a real client. Keep score out of 10. Start easy, get harder.

The pressure is the practice. The AI plays the pushy buyer so the real one never catches you off guard.

//

It takes 20 years to build a reputation and five minutes to ruin it. If you think about that, you'll do things differently.

— WARREN BUFFETT

Everything today was reputation insurance — for you, for this firm, and for every family that trusts us with the biggest decision of their lives.